

GAHC010068492022



2025:GAU-AS:10453

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/2593/2022

BAHARUL ISLAM AND 3 ORS
S/O- LATE ABDUL MANNAN
R/O- VILLAGE FAKALI, P.O- RUPAHI,
P.S- RUPAHIHAT, DIST- NAGAON, ASSAM, PIN-782125

2: AKBAR ALI S/O- LATE KUMED ALI
R/O- VILLAGE GAREMATIKHOWA
P.O- BARGHAT P.S- RUPAHIHAT
DIST- NAGAON ASSAM PIN-782125

3: ABDUL MANNAN
S/O- LATE AFSAR ALI
R/O- VILLAGE KUCHGAON
P.O- SAIDARIA P.S- RUPAHIHAT
DIST- NAGAON ASSAM PIN-782125

4: SHAHA ALAM
S/O- LATE SER ALI
R/O- VILLAGE FAKALI
P.O- RUPAHI P.S- RUPAHIHAT
DIST- NAGAON ASSAM PIN-78212

VERSUS

THE STATE OF ASSAM AND 6 ORS
REP. BY THE PRINCIPAL SECRETARY TO THE GOVERNMENT OF ASSAM,
PANCHAYAT AND RURAL DEVELOPMENT DEPARTMENT, DISPUR,
GUWAHATI-6

2: THE COMMISSIONER
PANCHAYAT AND RURAL DEVELOPMENT DEPARTMENT
ASSAM JURIPAR PANJABARI GUWAHATI-37

3: THE DEPUTY COMMISSIONER NAGAON ASSAM PIN-782001

4:THE BLOCK DEVELOPMENT OFFICER
RUPAHIHAT DEVELOPMENT BLOCK
P.O- RUPAHI DIST- NAGAON
ASSAM PIN-782125

5:THE CHIEF EXECUTIVE OFFICER
NAGAON ZILLA PARISHAD
DIST- NAGAON
ASSAM
PIN-782001

6:THE FAKALI GAON PANCHAYAT
REP. BY ITS SECRETARY
VILL- FAKALI
P.O- ROWMARI
DIST- NAGAON
ASSAM
PIN-782125

7:RUHUL AMIN
(EX SECRETARY OF FAKALI GAON PANCHAYAT)
S/O- LATE HUSSAIN ALI
VILLAGE AND P.O- ROWMARI
P.S- RUPAHIHAT
DIST- NAGAON
ASSAM
PIN-78212

Advocate for the Petitioner : MD. S ALOM, MR. M S ALAM,MS. A BEGUM

Advocate for the Respondent : SC, P AND R.D., P DAS,MR. MEHBOOB ALAM,MR. K BORUAH,GA, ASSAM

BEFORE
HONOURABLE MR. JUSTICE N. UNNI KRISHNAN NAIR

ORDER

Date : 08.08.2025

Heard Mr. S. Alom, learned counsel for the petitioner. Also heard Mr. A. K. Ghosh, learned standing counsel, Panchayat & Rural Development Department, and Mr. J. Handique, learned Government Advocate; appearing on behalf of their respective respondents.

Mr. Alom, learned counsel, upon perusal of the Show Cause Notice, dated 21-05-2024, issued to the respondent No. 7; has submitted that he is satisfied that the respondents have instituted action in the matter with regard to the misconduct committed by the respondent No. 7. Accordingly, Mr. Alom, learned counsel, has submitted that the petitioner be permitted to withdraw the present writ petition with liberty to re-file the same, in the event, a fresh cause of action so arises.

In view of the above submissions made by Mr. Alom, learned counsel for the petitioner; the instant writ petition stands dismissed on withdrawal.

However, liberty is granted to the petitioner, herein, to approach the appropriate forum, in the event, a fresh cause of action arises in the matter.

Before parting with the records; this Court would like to observe that it is expected of the respondent authorities to take the departmental proceeding so instituted against the respondent No. 7, to its logical conclusion, in accordance with law.

JUDGE

Comparing Assistant